

DUTIES OF TRUSTEES TO PRESERVE CONTINGENT
REMAINDERS.

1. TRUSTS of this description are at present of much less frequent occurrence than they were formerly, and the reason is easily explained.¹

2. **Object of the settlement under the old law.** — As the law stood before the recent Acts, which will be noticed presently, the objects of a strict settlement (where there was no limitation to trustees to preserve contingent remainders), were liable to be defeated in the two following ways:

In the first place, as formerly a contingent remainder was extinguishable by the *surrender* or *merger* of the particular estate in the inheritance (*a*), if lands were limited to A. for life with remainder to his unborn children, with remainder to B.; A. might surrender his life estate to B., or B. might release to A., or A. and B. might join in a conveyance of the fee simple to C., and in each case the contingent remainder was squeezed out, and if issue were afterwards born, they had no remedy at law or in equity.

Again, the intention of the settlor was that the estate should remain in the family as long as the law permitted, and that on the death of the tenant for life it should devolve on the person who happened at the time to stand next in the series of limitations, but in fact when the eldest son attained twenty-one he was enabled, with the concurrence of his father in making a tenant to the *præcipe*, to bar all the subsequent remainders; and thus, on the majority of the eldest son, the estate became the absolute property of the father and son, and the interests of those in remainder were

(*a*) Also by forfeiture of the particular estate. But see now 8 & 9 Vict. c. 106, s. 8.

¹ Trustees to preserve contingent remainders are rendered unnecessary in the United States by local statutes, excepting perhaps Pennsylvania.